GENERAL TERMS AND CONDITIONS OF SALE

1. Scope of Application

These General Terms and Conditions of Sale govern the contractual relationships between Idealtech (hereinafter referred to as the "Company") and its business customers (hereinafter referred to as the "Customer") concerning the sale of machinery, equipment, components, spare parts and other products manufactured or marketed by the Company.
These conditions shall also apply to any ancillary services agreed upon, unless otherwise expressly provided for in specific written agreements.
Any general terms and conditions of purchase proposed by the Customer that differ from or supplement these conditions shall not apply unless expressly accepted in writing by the Company.
Any amendment to or derogation from these conditions must be agreed in writing and shall apply exclusively to the contractual relationship to which it relates.

2. Quotations, Orders and Order Confirmations

Quotations and offers issued by the Company shall remain valid for the period specified therein. Unless otherwise stated, their validity shall be limited to 30 days from the date of issue, subject to withdrawal communicated before acceptance.
The contract shall be deemed concluded upon issuance of the Company's written order confirmation or upon commencement of order fulfilment, provided that such commencement clearly constitutes acceptance of the order.
Order confirmations may also be transmitted by email.
Any amendments requested by the Customer after conclusion of the contract shall be binding upon the Company only if expressly accepted by the Company in writing.

3. Technical and Commercial Information

Information, descriptions, images and technical data contained in the Company's catalogues, brochures, websites and other promotional materials are provided for illustrative purposes only and shall not constitute binding contractual commitments unless expressly incorporated into the quotation or order confirmation.
The Company reserves the right to make technical modifications to its products, provided that such modifications do not compromise the essential characteristics expressly agreed upon.
Any substantial modifications to contractual specifications must be agreed with the Customer in advance.

4. Information and Obligations of the Customer

The Customer shall promptly provide, in writing, all information necessary for the correct identification, manufacture and use of the requested products.
In particular, the Customer shall disclose any special operating conditions, characteristics of the materials used, technical requirements, environmental conditions, safety requirements and specific regulations applicable to the intended use.
The Customer shall be responsible for the accuracy and completeness of the information provided.
The Company shall not be liable for consequences directly arising from inaccurate, incomplete or omitted information supplied by the Customer, unless such consequences are also attributable to a breach of the Company's obligations.

5. Prices

The applicable prices shall be those stated in the accepted quotation or in the order confirmation issued by the Company.
Unless otherwise specified in writing, prices are exclusive of VAT, taxes, customs duties, transportation, insurance, installation and any other applicable additional charges.
Confirmed prices may not be modified unilaterally, except where expressly provided for in specific contractual provisions validly agreed between the parties.
Any changes requested by the Customer may result in a revision of prices and delivery terms, subject to the parties' prior written agreement.

6. Shipping, Transportation and Transfer of Risk

Shipping arrangements, place of delivery and allocation of costs shall be as specified in the quotation or order confirmation.
Unless otherwise agreed in writing, delivery shall take place at the Company's premises, with transportation costs borne by the Customer.
The risk of loss of or damage to the goods shall pass in accordance with the agreed delivery terms and applicable law.
Any requests for transportation insurance must be agreed before shipment. The related costs shall be borne by the Customer, unless otherwise agreed in writing.

7. Delivery Terms
Delivery dates specified in quotations or order confirmations shall be considered indicative and non-essential, unless expressly agreed otherwise in writing.
The Company undertakes to comply with the agreed delivery schedules as far as reasonably possible and to promptly notify the Customer of any significant delays.
For special machinery, customised products or products manufactured according to the Customer's specifications, delivery schedules may be revised in the event of design modifications, delays in the provision of necessary information or other circumstances not attributable to the Company.
Partial deliveries shall be agreed with the Customer, unless already provided for in the order.
The mere expiry of an indicative delivery date shall not automatically entitle the Customer to terminate the contract, without prejudice to any remedies provided by mandatory provisions of applicable law.

8. Force Majeure
The Company shall not be liable for delays or failures to perform resulting from extraordinary, unforeseeable events beyond its reasonable control that prevent or make the performance of contractual obligations excessively difficult, to the extent permitted by law.
Such events may include, by way of example, natural disasters, wars, government measures, extraordinary interruptions of energy supplies and serious logistical disruptions not attributable to the Company.
The affected party shall promptly notify the other party of the event and take all reasonable measures to mitigate its consequences.
Should the impediment continue for more than 60 consecutive days, either party may request termination of the contract with respect to obligations not yet performed, by written notice, without prejudice to obligations already accrued and any applicable mandatory legal provisions.

9. Warranty
The Company warrants that new products supplied shall comply with the expressly agreed technical specifications and shall be free from defects in materials or workmanship attributable to the Company, within the limits established by law and the contract.
Unless otherwise agreed in writing or required by mandatory provisions of applicable law, the contractual warranty shall remain valid for **12 months from the date of delivery**.
Under the warranty, the Company may, at its discretion and to the extent permitted by law, repair or replace components found to be defective.
Any warranty work must be agreed in advance with the Company, including arrangements for the return or inspection of the relevant components.
Any mandatory rights and remedies granted to the Customer under applicable law shall remain unaffected.

10. Warranty Exclusions and Limitations
The warranty shall not cover defects or damage directly resulting from:

- improper use or use not compliant with the instructions provided;
- incorrect installation, connection or maintenance, where not performed by the Company;
- normal wear and tear of components;
- use of materials, adhesives or substances incompatible with the declared technical specifications;
- unauthorised modifications or interventions that caused or contributed to the defect;
- accidental events or external causes not attributable to the Company.

The use of non-original components shall not automatically invalidate the entire warranty but may exclude coverage for defects directly attributable to such components.
Unless otherwise expressly agreed in writing, the Company warrants the functional characteristics of its equipment but does not guarantee any specific outcome of the Customer's production process where such outcome depends on external factors beyond the Company's control, including materials, adhesives, environmental conditions or third-party equipment.
For used or refurbished products, the terms and duration of any contractual warranty shall be specified in the quotation or order confirmation, without prejudice to any mandatory rights provided by law.

11. Claims and Returns
Upon receipt of the goods, the Customer shall inspect the integrity of the packaging and verify that the delivery corresponds to the relevant shipping documents.
Any claims concerning quantities, product codes or apparent discrepancies must be submitted in writing within 8 days of receipt, unless different mandatory statutory time limits apply.
Defects that could not reasonably be detected during an ordinary inspection must be reported within the time limits established by law or validly agreed between the parties.
Returns of conforming products for commercial reasons shall be subject to the Company's prior written authorisation.
The Company shall determine the applicable return conditions and any associated handling charges.
Products manufactured according to the Customer's specifications or otherwise customised shall not be eligible for commercial returns, unless otherwise agreed in writing.
The Customer's rights in respect of defects or non-conformities for which the Company is legally responsible shall remain unaffected.

12. Payment Terms
Payments shall be made in accordance with the methods and due dates specified in the quotation, order confirmation or invoice, in compliance with applicable legal provisions.
In the event of non-payment or late payment, default interest shall automatically accrue, where applicable, in accordance with Italian Legislative Decree No. 231/2002, as subsequently amended, without the need for any formal notice of default.
The Company reserves the right to recover debt collection costs and to claim compensation for any further damages, within the limits permitted by law.
In the event of non-payment, including partial non-payment, the Company may, where the applicable legal requirements are met, suspend performance of outstanding deliveries, request adequate guarantees or exercise any other remedies available under the contract or applicable law.

13. Retention of Title
Unless otherwise agreed in writing and to the extent permitted by applicable law, the products supplied shall remain the property of the Company until the purchase price has been paid in full.
The Customer undertakes to exercise due care in storing and safeguarding goods subject to retention of title and shall not perform any acts incompatible with the Company's ownership rights.
The enforceability of the retention of title against third parties shall be subject to compliance with any formal requirements prescribed by applicable law.

14. Limitation of Liability
Except in cases of wilful misconduct, gross negligence and any other liability that cannot lawfully be excluded or limited, the Company shall not be liable for indirect or consequential damages arising from the use of the products supplied, including production losses, loss of profits or business interruption, to the extent that such liability may validly be excluded.
The Company shall not be responsible for production results dependent on materials, processes, operating conditions or equipment beyond its control, unless specific contractual commitments have been expressly undertaken in writing.
Any mandatory liability imposed by applicable law, including product safety liability, shall remain unaffected.

15. Objections and Suspension of Payments (Solve et Repete)
Within the limits established by Article 1462 of the Italian Civil Code, the Customer shall not raise objections for the sole purpose of delaying or avoiding payment of amounts contractually due.
Objections relating to the nullity, voidability or rescission of the contract, as well as any other limitations and safeguards provided by mandatory provisions of law, shall remain expressly unaffected.

16. Governing Law and Jurisdiction
These General Terms and Conditions of Sale and all contractual relationships governed by them shall be subject to Italian law, with the express exclusion, to the extent permitted by law, of the United Nations Convention on Contracts for the International Sale of Goods (Vienna Convention of 1980 – CISG).
Any dispute arising out of or in connection with the interpretation, performance, breach or termination of sales contracts shall be subject to the jurisdiction of the Italian courts.
The **Court of Monza, Italy, shall have exclusive jurisdiction**, without prejudice to any mandatory provisions of applicable law or international conventions.

17. Contractual Language
These General Terms and Conditions of Sale are available in Italian and English.
In the event of any discrepancy, inconsistency or difference in interpretation between the two versions, the Italian version shall prevail.

ACCEPTANCE OF GENERAL TERMS AND CONDITIONS OF SALE

The Customer declares that it has read, understood and accepts these General Terms and Conditions of Sale in their entirety.

Place and Date: _____

Customer's Company Name: _____

Name and Position of Authorised Representative: _____

Signature: _____

SPECIFIC APPROVAL OF CONTRACTUAL CLAUSES

Pursuant to and for the purposes of Articles 1341 and 1342 of the Italian Civil Code, the Customer declares that it has read, understood and expressly and specifically approves, to the extent applicable, the following clauses:

7. Delivery Terms – Non-essential nature of delivery dates and provisions governing delays.

8. Force Majeure – Limitations of liability and right to terminate in the event of a prolonged impediment.

9. Warranty – Limitations of the contractual warranty and applicable remedies.

10. Warranty Exclusions and Limitations – Exclusions from contractual warranty coverage.

11. Claims and Returns – Time limits for claims and restrictions on commercial returns.

12. Payment Terms – The Company's right to suspend deliveries where permitted.

14. Limitation of Liability – Exclusions and limitations of the Company's liability.

15. Objections and Suspension of Payments (Solve et Repete) – Limitations on the Customer's right to raise objections.

16. Governing Law and Jurisdiction – Exclusive jurisdiction of the Court of Monza, Italy.

Place and Date: _____

Customer's Company Name: _____

Name and Position of Authorised Representative: _____

Signature for Specific Approval: _____